



January 31, 2024

Senator Ryan T. McDougle
General Assembly Building, Room 1406
201 North 9th Street
Richmond, Virginia 23219
(804) 698-7526

Senator Adam P. Ebbin
General Assembly Building, Room 611
201 North 9th Street
Richmond, Virginia 23219
(804) 698-7539

RE: Virginia SB 252 – Oppose

Dear Chair Ebbin and Senator McDougle:

On behalf of the advertising industry, we oppose Virginia SB 252.¹ Below we provide our non-exhaustive list of concerns with this proposed legislation. SB 252's provisions are significantly out-of-step with privacy laws in other states and wholly unnecessary given that the Commonwealth has already enacted privacy protections for consumer data. In addition, SB 252's focus on one specific technology renders it inflexible and likely to be obsolete as technologies change and develop over time. Finally, the bill's provisions will needlessly create nuisances and confusion for Virginians as they traverse the Internet. We therefore strongly encourage you to decline to advance the bill any further in the legislative process.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product ("GDP") in 2020.² Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage further with the Senate General Laws and Technology Committee ("Committee") to discuss the issues we catalog in this letter.

I. SB 252 is duplicative and unnecessary, as Virginia law already gives consumers control over commercial uses of data.

If enacted, SB 252 would require a controller's privacy notice to include a method by which a consumer may opt out of cookie placement on web browsers and would prohibit controllers from using cookies that are not "strictly necessary" without consumer consent.³ The Virginia Consumer Data Protection Act ("VCDPA") already gives consumers rights to control uses of data collected through cookies by opting out of "sales" and "targeted advertising," as defined, and imposes data minimization requirements on regulated controllers.⁴ By creating a brand new opt-out right for all cookies, including

¹ Virginia SB 252 (Reg. Sess. 2024), located [here](#) (hereinafter, "SB 252").

² John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located [here](#) (hereinafter, "Deighton and Kornfeld").

³ SB 252 at § 59.1-578(C)(5).

⁴ See Va. Code Ann. § 59.1-575 et. seq.

those that are “strictly necessary,” SB 252 would permit consumers to opt out of strictly necessary uses of personal data, such as uses that enable consumers to view webpages and log in to accounts. The bill would expand the VCDPA’s opt-out rights in ways not required by existing law to capture uses of personal data that are necessary for consumers to access and view content on the Internet. SB 252 is thus either duplicative and unnecessary given provisions already set forth in the VCDPA, or will create new restrictions on data processing not intended by VCDPA that will detrimentally impact Virginians’ digital experience.

II. SB 252’s myopic focus on one type of technology makes it unadaptable to technologies that advance and change.

SB 252 is technology specific. The bill would narrowly regulate just one kind of online technology—cookies—when other technologies that perform the same functions as cookies exist and are widely used in the marketplace today. The VCDPA already provides a broader opt-out right that applies to processing purposes regardless of the underlying technologies used. SB 252 is consequently overly specific and an ineffective, long-term proposal for meaningful consumer protection.

III. SB 252 would lead to consent fatigue and create a frustrating online environment for Virginians.

SB 252’s proposed consent requirements for the placement of any cookies other than those that are “strictly necessary” would have a noticeable, annoying, and detrimental impact on Virginians’ online experience by forcing entities to implement cookie consent banners and causing notice fatigue. In Europe, regulators and stakeholders have widely acknowledged that cookie consent banners do little to inform consumers or provide them with meaningful control over personal data.⁵ SB 252’s consent requirements would have detrimental impacts for Virginians, for example, by precluding a website from remembering items placed in an online cart for purchase and impairing improvements to website performance and rendering speeds for consumers. If enacted, SB 252 would create a nuisance-laden and frustrating online environment for Virginians that would differ starkly from the digital experience enjoyed by consumers in every other state. The Committee should decline to advance SB 252 through the legislative process.

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⁵ Kate Fazzini, *Europe’s sweeping privacy rule was supposed to change the internet, but so far it’s mostly created frustration for users, companies, and regulators*, CNBC (May 5, 2019), located [here](#); Joe Nocera, *How cookie banners backfired*, NEW YORK TIMES (Jan. 29, 2022), located [here](#); Hélène de Lauzun, *EU Commission Working To End ‘Cookie Fatigue’*, The European Conservative (Apr. 10, 2023), located [here](#).

We ask you to carefully consider SB 252's potential impact on Virginians' Internet experience and the protections already available to Virginians under the VCDPA as you consider the bill. SB 252's out-of-step provisions would unnecessarily impede Virginians' ability to seamlessly access helpful services and information online. We therefore respectfully ask you to reconsider the bill.

Thank you for your consideration of this request.

Sincerely,

Christopher Oswald
EVP for Law, Ethics & Govt. Relations
Association of National Advertisers
202-296-1883

Alison Pepper
EVP, Government Relations & Sustainability
American Association of Advertising Agencies, 4A's
202-355-4564

Lartase Tiffith
Executive Vice President, Public Policy
Interactive Advertising Bureau
212-380-4700

Clark Rector
Executive VP-Government Affairs
American Advertising Federation
202-898-0089

Lou Mastria, CIPP, CISSP
Executive Director
Digital Advertising Alliance
347-770-0322

CC: Members of the Virginia Senate General Laws and Technology Committee

Mike Signorelli, Venable LLP
Allie Monticollo, Venable LLP